

**IN THE UNITED STATES DISTRICT COURT
FOR THE NORTHERN DISTRICT OF TEXAS
FORT WORTH DIVISION**

KATHRYN COPELAND,	§	
Plaintiff,	§	
v.	§	
WEINSTEIN MANAGEMENT CO.,	§	
INC.; WMCI DALLAS X, LLC;	§	
ALLISON WEINSTEIN, individually	§	
and in her capacity as Co-President;	§	Civil Action No. _____
LILE BENAICHA, individually and	§	
in her capacity as General Counsel;	§	
PHILADELPHIA INDEMNITY	§	
INSURANCE COMPANY; and	§	
AMYE BROCHSTEIN, individually	§	
and in her capacity as claims	§	
Defendants	§	

**Plaintiff's Supplemental Declaration of Kathryn Copeland
Regarding Notice and Post-Demand Escalation
(Submitted in Support of Emergency Application for
Narrow Temporary Restraining Order)**

I, Kathryn Copeland, declare under penalty of perjury pursuant to 28 U.S.C. § 1746 as follows:

1. I am the Plaintiff in this action. I am over the age of 18 and competent to make this Declaration. I make it on personal knowledge and on records of contemporaneous communications and Texas Tyler e-filing receipts available to me. If called as a witness, I could and would testify to the matters stated herein.

2. On May 10, 2026, at approximately [TIME] CDT, I served by email upon Defendants and counsel of record a formal pre-suit federal civil-rights demand letter (the "Demand Letter"). The Demand Letter set a deadline of 9:00 a.m. CDT, Monday, May 11, 2026, for Defendants to confirm receipt, identify counsel of record for purposes of federal proceedings, and confer in good faith on a structural-relief framework substantially as described in that letter. The Demand Letter is filed contemporaneously herewith as Exhibit 28 to the Verified Complaint.

3. Defendants did not respond to the Demand Letter on the merits, did not confirm receipt, did not identify federal counsel, and did not confer. Instead, on Monday, May 11, 2026 — the same day on which my Demand Letter deadline expired at 9:00 a.m. CDT — Defendants Weinstein Management Co., Inc., and WMC Dallas X, LLC, through Wentz & Zavarelli L.L.P. as counsel of record, filed in the 141st Judicial District Court of Tarrant County, Cause No. 141-370402-25, a 144-page "Combined Motion for Traditional and No-Evidence Summary Judgment" directed at the same disability- and accommodation-related conduct that is the subject of my Demand Letter and of the Verified Complaint filed herewith. That filing is pleaded in the Verified Complaint, ¶ 94, as the Fourth Corporate Ratification of post-notice interference, and is filed contemporaneously herewith as Exhibit 29 to the Verified Complaint.

4. At 7:58 p.m. CDT on May 11, 2026, exercising my right under Texas Rule of Civil Procedure 162, I filed a Notice of Nonsuit Without Prejudice of my affirmative claims in the 141st District Court action (Tyler eFile Envelope No. 114755572). The nonsuit was effective on filing under *In re Bennett*, 960 S.W.2d 35, 38 (Tex. 1997). Defendants and counsel of record received electronic service notification of the nonsuit through the Texas Tyler e-filing system contemporaneously with filing.

5. Notwithstanding my May 11, 2026 Notice of Nonsuit, on May 12, 2026, Defendants re-served a corrected version of the same 144-page Combined Motion for Summary Judgment in the 141st District Court action, evidenced by a Notification of Service dated May 12, 2026 (Tyler eFile Envelope No. 114772665, filed at approximately [TIME] CDT). That re-service occurred after Defendants had electronic notice of my nonsuit and after the deadline in my Demand Letter had expired. The May 12 re-service is pleaded in the Verified Complaint, ¶ 95, as the Fifth Corporate Ratification of post-notice interference.

6. The conduct described in paragraphs 3 and 5 above is consistent with a documented pattern, pleaded more fully in the Verified Complaint, ¶¶ 87–96, in which each prior written federal civil-rights notice from me to Defendants has been followed within days by an escalation rather than a merits response. Each ratification post-dates the June 30, 2025 actual-notice baseline. Each was executed by corporate

Defendants whose Co-President (Defendant Allison Weinstein, J.D.), whose General Counsel (Defendant Lile Benaicha, J.D.), and whose insurance claims representative (Defendant Amye Brochstein, Esq.) are each licensed attorneys with personal written notice of the federal civil-rights claims.

7. As of the date and time of filing this Declaration: (a) no Defendant has responded to my May 10, 2026 Demand Letter on the merits; (b) no Defendant has confirmed receipt of the Demand Letter; (c) no Defendant has identified federal counsel of record; and (d) no Defendant has proposed any structural-relief framework or any voluntary cessation of the conduct pleaded in the Verified Complaint.

8. Contemporaneously with the filing of this Declaration, the Verified Complaint, and the Emergency Application for Narrow Temporary Restraining Order, I am providing Defendants and counsel of record with electronic service of all such filings, including by email service to publicly listed Weinstein Properties addresses; by email service to Wentz & Zavarelli, L.L.P. (Glynis Zavarelli, gzavarelli@wandzlaw.com; Michelle Sortor, msortor@wandzlaw.com); by email service to Higier Allen & Lautin, P.C. (Roberto Rodriguez, rrodriguez@higierallen.com; Robert Henderson, rhenderson@higierallen.com); by email service to Defendant Lile Benaicha as General Counsel; and by email service to Defendant Amye Brochstein, Esq. (amyebrochstein@phly.com). I am also

dispatching Federal Express overnight delivery to the principal places of business of the corporate Defendants and to counsel of record.

9. I submit this Declaration so that the timing and sequence of the May 10–12, 2026 communications and filings, and Defendants' pattern of escalation under notice, are squarely before this Court in connection with the contemporaneously filed Emergency Application for Narrow Temporary Restraining Order. The factual matters in this Declaration are within my personal knowledge.

I declare under penalty of perjury that the foregoing is true and correct.

Executed this 12th day of May, 2026, in Tarrant County, State of Texas.

Respectfully Submitted,

Kathryn Copeland

KATHRYN COPELAND

Pro Se Plaintiff

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Dated: May 12, 2026